

EXHIBIT A

STATEMENT OF WORK

CUSTODIAL SERVICES

REVISED UNDER BULLETIN #3

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SOW ATTACHMENTS

- 1 Facility Specification Sheets
- 2 Performance Requirements Summary (PRS) Chart
- 3 Sign-in Sheet
- 4 Entry Application for Custody Facilities

1.0 SCOPE OF WORK

Contractor must provide Janitorial and Custodial Services (Services), across multiple County-designated Facilities (Facilities) identified in Attachment 1 (Facility Specification Sheets), to this Statement of Work (SOW), by providing all labor and supervision necessary for Contractor's performance under the Contract.

Services for the Facilities include, but are not limited to, cleaning of offices, taking out trash, spot cleaning windows, disinfecting door handles, cleaning, sanitizing and disinfecting of booking areas, classifications areas, court and custody lines, ramps, release areas, inmate cells, inmate holding and seating areas, inmate showers, restrooms, and kitchen areas located at each serviced Facility, in an effort to control the spread of infections.

All Facilities must be cleaned and maintained by Contractor in a manner that meets all applicable standards and compliance requirements including, but not limited to, those mandated by the Centers for Disease Control and Prevention (CDC) and the Occupational Safety and Health Administration (OSHA).

2.0 DAYS AND HOURS OF WORK

Contractor must provide Services, in accordance with the Days and hours of operations identified in Attachment 1 (Facility Specification Sheets), to this SOW.

3.0 ADDITION AND/OR DELETION OF LOCATIONS

- 3.1 The County reserves the right to add or delete Facilities, adjust staffing requirements based on the workload and needs of the Facilities, and/or Facility servicing hours during the term of the Contract. All changes must be made in accordance with Paragraph 8.1 (Change Notices and Amendments) of the Contract.

3.1.1 Additional Custodial Services

Facilities that are added to the Contract after the initial award will be assigned to the affected Region; however, the County, at its sole discretion, reserves the right to assign new Facilities to any County Contractor. New Facility assignments will be based on the needs of the affected Region and Contractor's capabilities to perform the Services as well as the business needs of the County.

- 3.1.1.1 Except with respect to any emergency Services requested and approved by the County, if the County requests any Services not specified in this SOW, any Attachment hereto or otherwise in the Contract, or requests an increase in the maximum required staffing for provision of Services under the Contract (Additional Services), such Additional Services must be provided by Contractor only following the County's written approval. To implement such changes, a Change Notice or Amendment which includes at a minimum, the scope of Work and number of staffing needed for Additional Services must be prepared and executed.

3.1.1.2 Contractor must commence Services within ten Business Days from the date a new Facility is approved. The County reserves the right to request Additional Services from another County Contractor, should Contractor fail to commence Services within ten Business Days.

3.1.1.3 Invoices for Additional Services completed must be submitted as specified in Paragraph 5.5 (Invoices and Payments) of the Contract.

3.2 Contractor's inability to perform the Services specified in this SOW, or for any other reason determined by the County, may result in the County utilizing other resources for Services including, but not limited to, reassigning a Facility and reallocating funds to another County contractor.

4.0 GENERAL CUSTODIAL SERVICES

4.1 Daily Cleaning Requirements

Contractor's employees must, on a daily basis, perform the Services listed below:

- a. Clean and disinfect high touch points at least once a Day or as often as determined necessary by the County (e.g., counters, tables, doorknobs, light switches, handles, stair rails, elevator buttons, desks, keyboards, phones, toilets, faucets, sinks, carts).
- b. Use County-provided cleaning disinfectants or other approved disinfectants for regular surfaces plus an Environmental Protection Agency (EPA) registered disinfectant approved for viral/bacterial pathogens for high-touch surfaces.
- c. Wear gloves and splash goggles if there is a risk of splash. Refer to Safety Data Sheets or follow the instructions on the chemical label.
- d. Provide and use adequate barricades and signs to provide sufficient warning prior to, during, and after the performance of Services.

All Services performed must meet Department of Public Health (DPH) standards, Rutherford Joint Settlement Agreement (JSA) standard (as required) and the Centers for Disease Control and Prevention (CDC) cleaning protocol.

4.2 Module Floors, Inmate Cells, Detention Area (as applicable)

Contractor's employees providing Services at custody Facilities must, on a daily basis:

4.2.1 Clean open/locked cells, as follows:

- a. Remove all trash, mattress, linen, blankets, gowns, gowns, clothing.
- b. Sweep, mop and sanitize each cell.
- c. Clean and sanitize toilet, urinals and sink area.
- d. Clean and disinfect shower compartment, floors, walls, doors, and windows.

- e. Spot clean cell walls, partitions, windows, and doors.
 - f. Remove/clean graffiti and vandalism, as required.
 - g. Power wash and sanitize cells that require deep cleaning due to biohazard fluids, as required.
- 4.2.2 Clean module staging area, sallyports, inmate visiting area, and indoor recreation areas, as follows:
- a. Sweep and mop all areas.
 - b. Spot clean walls, partitions, windows and doors
 - c. Sanitize objects/areas that are used regularly (e.g., door handles and countertops).
 - d. Remove/clean graffiti and vandalism, as required.

4.3 Interior - Briefing Room & Armory (as applicable)

Contractor's employees providing Services must, on a daily basis:

- a. Dust all surfaces and display cases. Damp-wipe and dry all glass surfaces, removing fingerprints and smudges. Contractor must take precautions not to disturb memorabilia on dusted surfaces, as required.
- b. Clean and disinfect plastic containers and surfaces in security check points located at main entrance at least two times per Day, as required.
- c. Clean baseboards, walls, kick plates, furniture, and other surfaces exposed to water and/or chemical splashing.
- d. Clean and disinfect telephones.
- e. Clean and disinfect drinking fountains.
- f. Clean custodial closets and keep supplies and equipment orderly.
- g. Clean and/or vacuum sofas and chairs, as required.
- h. Clean all walls, doors, and tracks.
- i. Polish all stainless steel and chrome fixtures, as applicable.
- j. Clean all elevator floors. Disinfect elevator "call" button panel, including "call" buttons located outside of elevator and handrails located inside elevator, as required.
- k. Sweep and/or dust stairs, landings, and handrails. Disinfect handrails.
- l. Vacuum/spot clean all carpeted areas.
- m. Damp-mop and/or scrub hard-surface (non-carpeted) floors, followed by high-speed buffing with light spray non-slip wax application.
- n. Empty waste containers. Clean and disinfect containers inside and outside, place waste in appropriate disposal area, and replace plastic liners.

- o. Clean all common hallways, stairwells, floor control booths, artificial plants and the Employee Wellness Room thoroughly, daily, as applicable.

4.4 Building Entrances, Lobbies, and Exterior (as applicable)

Contractor's employees providing Services must, on a daily basis:

- a. Clean all entrance doors and partition glass.
- b. Clean balconies and ledges.
- c. Sweep exterior areas such as steps, sidewalks, and landings adjacent to the building.
- d. Inspect parking areas and exterior grounds for trash or debris. Collect and place trash in an appropriate disposal area.
- e. Provide and place appropriate mats at entrances and lobbies during rainy weather, as required.

4.5 Restrooms (Private and Public) and Showers

Contractor's employees providing Services must, on a daily basis:

- a. Dust ceiling vents.
- b. Clean and disinfect sink basins and all surrounding surfaces.
- c. Clean and disinfect restroom and shower fixtures.
- d. Clean, disinfect, and remove stains from toilets, urinals, and waterless urinals with germicidal solution.
 - Clean and maintain waterless urinals according to manufacturer's recommended maintenance including the use of recommended chemicals. Contractor must maintain a log at each Facility with date each urinal cartridge was replaced and scheduled date of next replacement.
- e. Clean behind toilet bowls and in corners of restroom floors.
- f. Clean restroom mirrors, kick plates, and disinfect push plates.
- g. Spot clean restroom walls, showers, partitions, and doors.
- h. Clean, disinfect and refill all restroom soap and paper dispensers.
- i. Clean and mop entire restroom floor with disinfectant solution and set up "wet floor" signs.
- j. Remove/clean graffiti and vandalism, as required.
- k. Empty waste containers. Clean and disinfect containers inside and out, place waste in appropriate disposal area, and replace plastic liners.
- l. Polish all stainless steel and chrome fixtures.
- m. Service sanitary napkin and/or tampon dispensers at the County's request.
 - If requested by the County, Contractor must purchase sanitary napkins and/or tampons and retain all monies collected from dispensers.

- Clean and disinfect buttons/pulls located on dispensers.
- n. Contractor must maintain air freshener dispensers in operating condition and replace batteries, including:
 - Refilling existing air freshener dispensers in restrooms with equal or better replacement products, as required.
 - Changing or replacing air freshener dispensers and/or products upon approval of County Project Manager.

4.6 Offices, Conference Rooms and Control Booths

Contractor's employees providing Services must, on a daily basis:

- a. Dust all furniture, including desks, tables, file cabinets, windowsills, and other dust catching surfaces.
- b. Damp-wipe and dry all glass surfaces.
- c. Clean and disinfect all surfaces.
- d. Remove fingerprints and smudges from desks, tabletops, walls, doors, door facings, telephones, etc.
- e. Clean door glass and frames.
- f. Remove gum, sweep and/or mop all hard-surface (non-carpeted) floors, as required.
- g. Vacuum/spot clean all carpeted areas, as required.
- h. Remove/clean graffiti and vandalism, as required.
- i. Empty waste containers. Clean and disinfect containers inside and outside, place waste in appropriate disposal area and replace plastic liners.

4.7 Lunchrooms, Eating and Vending Area (excludes area operated by vendor or food preparation area), as applicable

Contractor's employees providing Services must, on a daily basis:

- a. Dust appliances.
- b. Dust chairs and sofas.
- c. Dust window ledges.
- d. Clean and disinfect sinks and chrome fittings.
- e. Spot clean walls, as required.
- f. Remove/clean graffiti and vandalism, as required.
- g. Vacuum/spot clean all carpeted areas.
- h. Sweep and mop tile floors. Set up "wet floor" signs.
- i. Empty waste containers. Clean and disinfect containers inside and outside, place waste in appropriate disposal area, and replace plastic liners.

5.0 SERVICES FOR EMERGENCIES/CALL BACK WORK

Contractor may be required to provide call-back Work and/or emergency Services upon the County's request. Contractor must perform all call-back Work and emergency Services as specified in the Paragraphs below. Pricing for emergency Services must be as set forth in Exhibit B (Pricing Schedule) to the Contract.

5.1 Call Back Work

Contractor will be required to perform call-back Work for all Services not performed to the satisfaction of the County. All call-back Work must be completed at no additional cost to the County.

5.2 Emergency Services

5.2.1 Contractor must provide a 24/7 telephone number and/or answering service for immediate response to problems related to emergency or security issues at all Facilities. All emergency Service calls made to Contractor and answered by a voicemail, must be returned within 30 minutes of initial call from the County.

5.2.2 Contractor is required to provide County Project Manager a copy of the written estimate of costs, inclusive of all labor, Services, materials, equipment, etc., for each impacted Facility within four hours of the County's request. County Project Manager will review and provide written approval of the estimates prior to the provision of emergency Services by Contractor.

5.2.2.1 If the cost to complete emergency Services exceeds Contractor's original cost estimate, Contractor must immediately submit a revised cost estimate and a detailed written justification for the cost difference to County Project Manager for approval.

5.2.3 Contractor will only be reimbursed for the actual costs of any emergency Services it has provided following written approval by County Project Manager.

6.0 SUPPLIES AND EQUIPMENT

6.1 County-Furnished Items (Regions 1-3)

6.1.1 The County will provide, at the County's sole expense, all janitorial and custodial equipment required for Services under the Contract, including, but not limited to, all paper and restroom supplies, cleaning solutions, cleaning chemicals, protective safety gear, vacuum cleaners, buffers, strippers, scrubbing machines, extension poles, ladders, carpet extraction equipment, brooms, mops, buckets, etc., unless otherwise specified in the Contract or authorized by the County for provision by Contractor.

6.1.2 Prior to the Contract start date, the County will ensure the required equipment is available at each Facility assigned to Regions 1-3.

- 6.1.3 All equipment furnished by the County and used by Contractor will remain County property.

6.2 Contractor-Furnished Items (Region 4)

- 6.2.1 Contractor must provide, at Contractor's sole expense, all custodial supplies, including, but not limited to, mops, brooms, dispensers, paper towels, toilet paper, toilet liners, plastic trash liners, liquid and hand soaps, cleaning agents, chemicals, waterless urinal cartridges, cubes, cleaners and sanitizers, and any additional supplies/equipment needed to perform the Services specified in this SOW. Contractor certifies that all furnished custodial supplies are not harmful to the surfaces being cleaned. Contractor must use materials and equipment that are safe for the environment and safe for use by Contractor employees. All materials and supplies are subject to County approval.
- 6.2.2 Prior to the Contract start date, Contractor must deliver the required supplies and equipment approved by County Project Manager to all Region 4 Facilities. Thereafter, Contractor is responsible for maintaining a two-week inventory of supplies at all Region 4 Facilities, to ensure continuity of Services. If storage space is limited, then this inventory may be reduced to a one-week supply, as approved by County Project Manager.
- 6.2.3 Contractor assumes all risk of lost and damaged supplies, materials, and equipment stored. Contractor must immediately report to County Project Manager any accidents and/or loss of equipment, supplies, etc.

7.0 COUNTY RESPONSIBILITIES

7.1 Furnished Items

- 7.1.1 The County will provide all utilities, including gas, electricity and water, in Facilities where Contractor provides Services. The County will be responsible for maintaining building systems including plumbing, electrical, etc.
- 7.1.2 The County will provide storage areas to Contractor as determined by the County. The storage areas provided will be limited to the existing custodial closet(s). Contractor is prohibited from use of said storage areas or any other County property for the conduct of their business interests that are not related to or required by the Facility.
 - 7.1.2.1 County-provided carts containing approved supplies, materials, and equipment must be stored in County custodial closets.
- 7.1.3 The County will provide an escort for Contractor's employees when providing Services in secured areas with inmates present.

8.0 CONTRACTOR RESPONSIBILITIES

8.1 Contractor Personnel

8.1.1 Contractor Employees Health Clearance

Contractor is responsible for providing all employees performing Work under the Contract an annual Tuberculosis (TB) test. Contractor must submit proof/certification of TB testing to the County, on no less than an annual basis.

8.1.2 Contractor must assign the sufficient number of employees to perform the required Services at each of the Facilities identified in Attachment 1 (Facility Specification Sheets), to this SOW.

8.1.3 Contractor is required to provide all labor, uniforms, badges, supervision, management, and any other goods and/or services that may be needed for provision of Services.

8.1.4 Contractor must provide and require every employee to wear a uniform with the company logo. The uniforms must be distinguishable from any County custodial staff uniforms. The County will provide written approval of uniforms prior to Contract start date.

8.1.5 In buildings where only one Contractor employee is assigned, the employee must be able to effectively communicate in English both orally and in writing. It is required that at least one of Contractor's employees working on any given shift in each Facility be able to effectively communicate in English both orally and in writing.

8.1.6 Contractor must designate one employee per shift as principal custodian with full responsibility for directing the entire custodial crew on their shift. Each principal custodian must be authorized to act on Contractor's behalf and must be able to effectively communicate in English both orally and in writing.

8.1.7 Each Contractor employee must sign a daily sign-in sheet [refer to Attachment 3 (Sign-in Sheet) to this SOW] and notify the County's designated contact before their Work shift begins.

8.1.8 Contractor must notify County Project Manager, when employees assigned to provide Services under the Contract are out on a scheduled or unscheduled absence or have terminated employment. Contractor must provide the name of the substitute employee and ensure the substitute employee obtains a County Identification (ID) badge prior to providing Services.

8.1.9 Contractor is responsible for controlling the conduct, demeanor, and appearance of all its employees, and representatives.

8.1.10 At no time must Contractor's employees violate building and/or room security by propping doors open and leaving them unattended during the performance of Services (e.g., trash removal). All entrance and exit doors

must be locked at all times. Contractor's employees must enter and leave through specified locations only, as identified by County Project Manager, to maintain Facility security.

- 8.1.11 Contractor's employees must only use those lights necessary for cleaning the immediate area where employees are working. In areas not in use, lights must be turned off and doors locked before leaving areas that have been cleaned.
- 8.1.12 Contractor's employees must not disturb papers on desks, open drawers or cabinets, use telephones, radios, or television sets, or tamper with any County or personal property.
- 8.1.13 Contractor's employees must turn in lost and found articles to the on-duty Watch Commander at each Facility.
- 8.1.14 Contractor's employees must report any hazardous, emergency (e.g., water pipe breakage, flood, or injury), or security conditions immediately to respective on-duty Watch Commander, within the same working shift as discovered.
- 8.1.15 Contractor's employees are subject to all rules and regulations of each Facility, including authorized searches by County staff.
- 8.1.16 Contractor's employees are prohibited from bringing the following into any of the Facilities:
 - a. Visitors,
 - b. Any cellular telephones or devices, cameras or video or audio recording equipment,
 - c. Any form of weapons or contraband, and/or,
 - d. Any alcohol or drugs or be under the influence of alcohol/drugs.
- 8.1.17 Contractor and Contractor's employees must not conduct nor allow to be conducted, tours or other unauthorized visits by any person not previously approved by County Project Director.
- 8.1.18 These terms will also apply to Subcontractors of County Contractors.

8.2 Contractor Supervisors (Regions 1–3 only)

- 8.2.1 Contractor must provide a thoroughly trained on-site supervisor, during each Work shift specified in Attachment 1 (Facility Specification Sheets) to this SOW, who is knowledgeable in all aspects of the Facility's operations and who must:
 - a. Be available to the County on a 24/7 basis,
 - b. Be able to effectively communicate in English both orally and in writing,
 - c. Be knowledgeable in all aspects of the custodial/housekeeping operation, and

- d. Have access to Contractor Project Manager during all hours of shift coverage, including holidays.

8.2.2 Supervisor must maintain a daily sign-in sheet [refer to Attachment 3 (Sign-in Sheet) to this SOW] which identifies the arrival, departure, lunch and break times of Contractor's employees. Previous months' time sheets are due on the 15th of every month and must be submitted to County Project Manager.

8.3 Special Staffing Requirements (Region 1, Century Regional Detention Facility (CRDF) Only)

Contractor must ensure that all personnel (custodians and supervisors) assigned to provide Services at CRDF are female, as further specified in Attachment 1 (Facility Specification Sheets) to this Statement of Work and Exhibit C (Staffing Plan) to the Contract.

8.4 Special Training Requirements

8.4.1 Contractor must ensure that employees are trained and abide by the County's Policy and Ethics covered in Manual of Policy and Procedures, 3-01/121.00, Policy of Equality.

8.4.2 Contractor is responsible for ensuring that each Contractor employee providing Services under the Contract has undergone proper orientation and is familiar with the Facility that they Service prior to providing Services at that Facility.

8.4.3 Contractor must provide training programs for all new and on-going employees while continuing in-service training for all employees and Subcontracted employees, including, but not limited to, visual aids dealing with the diverse cleaning needs of the Facility.

8.4.4 Contractor must provide to the County a summary of course material, and training schedules for each of the following:

a. Daily Cleaning Items

- i. Daily sanitized cleaning,
- ii. Restroom maintenance,
- iii. Corridor maintenance,
- iv. Walls,
- v. Floor care, and
- vi. Miscellaneous:
 - Drinking fountains/dispensers,
 - Door glass, and
 - Walls and glass partitions.

b. Calendar Scheduled Cleaning

- i. Restrooms,
- ii. High frequency (high & low dusting),
- iii. Ceiling vents,
- iv. Partition glass,
- v. Scrub and clean under and around lavatory units,
- vi. Remove mold, buildup, and soil markings, and
- vii. Disinfect with germicidal solution.

8.4.5 Contractor's employees must be trained in their assigned tasks and in safety in the workplace. All Contractor employees must Work in accordance with federal, state, and local statutes and directives. Contractor must comply with and maintain the Injury and Illness Prevention Program (IIPP) standards and records in accordance with federal and state OSHA requirements. Contractor must provide proof of training and IIPP records upon County's request.

8.4.6 Contractor is responsible for ensuring that employees are kept current and properly trained on all appropriate cleaning procedures, both new and existing in accordance with this Paragraph 8.4 (Special Training Requirements).

8.5 Approval of Contractor's Employees

8.5.1 The County has the absolute right to approve or disapprove any or all of Contractor's employees performing Work hereunder and any proposed changes in Contractor's employees.

8.5.2 The County will not accept Contractor's employees who have been involved in any of the following:

- a. High grade misdemeanor,
- b. Misdemeanor theft,
- c. Felony conviction,
- d. Conviction for a sex offense,
- e. Military conduct that involved dishonorable discharge, bad conduct, or an undesirable discharge,
- f. Conduct that would preclude the employee from receiving bond,
- g. Convictions of drunk or reckless driving within that last three years,
- h. Any pattern of irresponsible behavior including, but not limited to, unsatisfactory driving or employment records, or
- i. Any pattern of recent or habitual illegal drug use.

8.5.3 Contractor's employees performing Services under the Contract, including supervisors or Contractor Project Manager, will be required to

undergo and pass a background investigation, to the satisfaction of the County as a condition of beginning and continuing to provide Services under the Contract as further specified in Paragraph 7.5 (Background and Security Investigations) of the Contract. All background clearances will be determined by the Department. Arrest investigations and subsequent arrest information obtained by the Department may cause a background clearance to be revoked.

8.6 Contractor Maintenance of County-Furnished Equipment

8.6.1 Contractor is responsible for maintaining all County-furnished equipment. Contractor must immediately report to the respective on-duty Watch Commander any accidents and/or loss of equipment, supplies, etc. Contractor must confirm this report in writing within one Business Day following any loss or damage.

8.6.2 At the beginning of each shift, Contractor's employees must check out keys at the respective Facility's control booth. All such keys are property of the County and must be returned to the respective Facility's control booth at the end of each shift. Contractor must accept full responsibility for all keys issued to Contractor's employees. At no time are the keys to be duplicated by Contractor or taken home. Any lost keys will be investigated and replaced by the County at the sole expense of Contractor, including the cost of any re-keying associated with the lost key. If a key is bent, broken or damaged in any way, the damaged key will be returned and a new one will be re-issued.

8.6.2.1 Contractor must assign an individual to remain with Subcontractor employees until the specific job is completed. Contractor must maintain a log of all Subcontractors that worked in any Facility and submit the log with their invoice at the end of each month.

8.7 County Required Meetings

Contractor Project Manager or supervisor must meet with County Project Manager monthly, or as determined by the County, to evaluate Services. Contractor's representative must be familiar with all Facilities included in the Contract and be able to address issues related to Contractor's Services. Contractor and the County will then mutually determine a corrective course of action and timeframe to remedy any problems found.

8.8 Contractor's Office

Contractor must maintain an office within the County with a telephone in the company's name where Contractor conducts business. The office must be staffed during the hours of 8:00 a.m. to 5:00 p.m. (PST), Monday through Friday, by at least one employee who must be able to effectively communicate clearly in English both orally and in writing to respond to inquiries and complaints which may be received about Contractor's performance of the Contract. When the office is closed, an answering service must be provided to receive calls. Contractor must answer calls received by the answering service one hour of receipt of the call.

9.0 GREEN INITIATIVES

- 9.1 Contractor must use reasonable efforts to initiate “green” practices for environmental and energy conservation benefits. In using the Facilities, Contractor must develop and adhere to an energy conservation plan that is consistent with County policy, including seasonal thermostat settings.
- 9.2 Contractor must notify County Project Manager of Contractor’s new green initiatives implemented prior to the Contract commencement date.

10.0 QUALITY CONTROL

Contractor must establish and utilize a comprehensive Quality Control Plan (QCP) to assure the County a consistently high level of Service throughout the term of the Contract. The Plan must be submitted to County Project Manager for review within ten Days of the start of the Contract. The plan must include the following:

- 10.1 Method of monitoring to ensure that Contract requirements are being effectively and efficiently met.
- 10.2 The QCP must include, but not be limited to, the following:
 - a. Specific activities to be monitored either on schedule or unscheduled basis,
 - b. Methods of monitoring to include methods of verifying authenticity of reports and methods to ensure quality of Services,
 - c. Frequency of monitoring,
 - d. Sample forms to be used in monitoring,
 - e. Job title and employee performing monitoring functions, and
 - f. Plan for ensuring that Services will continue in the event of a natural or manmade disaster or strike as applicable.
- 10.3 A record of all inspections conducted by Contractor, any corrective action taken, the time a problem was first identified, a clear description of the problem, and the time elapsed between identification and completed corrective action, which must be provided to County Project Manager on a monthly basis.
- 10.4 Contractor must respond to complaints, specific to the Services being provided under the Contract, within 24-hours of notification of the complaint, as applicable. If a complaint is not abated within the time specified or to the satisfaction of the County, the County may correct the specific complaint. The total cost incurred by the County will be deducted from Contractor's monthly invoice.

11.0 QUALITY ASSURANCE PLAN

The County will evaluate Contractor’s performance under the Contract no less frequently than on an annual basis. Contractor must make itself available to the County or its agent during business hours for any monitoring reviews. Such monitoring will include assessing Contractor's compliance with all Contract terms and conditions and performance standards. Contractor's deficiencies, which the County determines are significant or continuing and which may place performance of the Contract in jeopardy if not corrected, will be reported to the County's Board

of Supervisors (Board) and listed in the appropriate Contractor performance database. The report to the Board will include improvement/corrective action measures taken by the County and Contractor. If improvement does not occur consistent with corrective action measures, the County may terminate the Contract or impose other penalties as specified in the Contract for Quality Assurance.

11.1 Monthly Meetings

Contractor is required to attend monthly meetings with County Project Manager. Contractor may be required to attend additional meetings to discuss deficiencies or Contract issues within 24-hour notice.

11.2 County Observations

In addition to Departmental contract staff, other County employees may observe performance, activities, and review documents relevant to the Contract at any time during normal business hours (Monday through Friday, 8:00 AM to 5:00 PM). However, these employees may not unreasonably interfere with Contractor's performance.

12.0 PERFORMANCE REQUIREMENTS SUMMARY

All listings of Services specified in Attachment 2 [Performance Requirements Summary (PRS)] to this SOW, are intended to be completely consistent with the Contract and this SOW, and are not meant in any case to create, extend, revise, or expand any obligation of Contractor beyond that defined in the Contract and this SOW.

When Contractor's performance does not conform to the requirements of the Contract, the County will have the option to apply the following non-performance remedies:

- a. Require Contractor to implement a formal corrective action plan, subject to approval by the County. In the plan, Contractor must include reasons for the unacceptable performance, specific steps to return performance to an acceptable level, and monitoring methods to prevent recurrence.
- b. Reduce payment to Contractor by a computed amount based on the damage fee(s).
- c. Reduce, suspend, or cancel the Contract for systematic, deliberate misrepresentations or unacceptable levels of performance.
- d. Failure of Contractor to comply with or satisfy the request(s) for improvement of performance or to perform the neglected Work specified within five Days will constitute authorization for the County to have the Service(s) performed by others. The entire cost of such Work performed by others because of Contractor's failure to perform said Service(s), as determined by the County, must be credited to the County on Contractor's future invoice. This Paragraph 12.0 (Performance Requirements Summary) does not preclude the County's right to terminate the Contract upon ten Days written notice with or without cause.